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TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.10. Definitions.

The following words and terms, when used in this chapter, have the following meanings, unless the context clearly indicates otherwise.

- (1) Act--Texas Occupations Code Chapter 1603.
- (2) Barbering--The services described by §1603.0011(a) and (b) of the Act.
- (3) Board--The Barbering and Cosmetology Advisory Board.
- (4) Class A Barber--A person who holds a class A barber license and who is authorized to perform any barbering service under Texas Occupations Code §1603.0011(a) and (b).
- (5) Commission--The Texas Commission of Licensing and Regulation.
- (6) Common Area--An area within an establishment or school which contains equipment and facilities available for use by all persons who practice barbering or cosmetology on the premises under a license or permit issued under this chapter or Texas Occupations Code, Chapter 1603.
- (7) Cosmetology--The services described by §1603.0011(a) and (c) of the Act.
- (8) Department--The Texas Department of Licensing and Regulation.
- (9) Digital Network--Any online-enabled application, Internet website, or system offered or used by a remote service business that allows a client to arrange for a digitally prearranged remote service.
- (10) Digitally Prearranged Remote Service--A barbering or cosmetology service performed for compensation by a person holding a license under this chapter that is:

(A) prearranged through a digital network; and

(B) performed at a location other than an establishment.

(11) Distance Education--A formal instructional process in which the student and teacher are separated by physical distance and a variety of communication technologies are used to deliver instruction in theory to the student. Courses taught by distance education do not satisfy the requirements of the practical portion of the course curriculum standards.

(12) Establishment--A place licensed under Subchapter E-2 of the Act where barbering or cosmetology is practiced. This term includes mini-establishments and mobile establishments, but does not include public or private schools.

(13) Esthetician--A person who holds an esthetician specialty license and who is authorized to practice the services defined in Texas Occupations Code §1603.0011(a)(3)-(6), and (c). The term esthetician in this chapter includes the term facialist.

(14) Executive Director--The executive director of the Texas Department of Licensing and Regulation.

(15) Eyelash Extension Application--The process of applying or removing a semi-permanent, thread-like, natural or synthetic single fiber to an eyelash, including cleansing of the eye area and lashes prior to applying and after removing extensions. The term does not include a temporary strip or cluster of eyelashes attached to the lash line with an adhesive.

(16) Eyelash Extension Specialist--A person who holds an eyelash extension specialty license and who is authorized to practice the service defined in Texas Occupations Code §1603.0011(c).

(17) Full-service Establishment--An establishment authorized to perform all services defined as barbering or all services defined as cosmetology under the Act.

(18) Guest Presenter--A person who possesses subject matter knowledge in specific curriculum topics and who has the teaching ability necessary to impart the information to students. Instruction is limited to the presenter's area of expertise and an instructor must be present during the classroom session in order for students to earn hours.

(19) Hair weaving specialist--A person who holds a hair weaving specialty license and who is authorized to practice the services defined in Texas Occupations Code §1603.0011(a)(9).

(20) Hair weaving specialist/esthetician--A person who holds a hair weaving specialist/esthetician specialty license and who is authorized to practice the services defined in Texas Occupations Code §1603.0011(a)(3)-(6), (9), and (c). A hair weaving specialist/esthetician may also be known as an "esthetician/hair weaving specialist."

(21) Instructor--An individual who holds a license issued by the department under Subchapter E-1 of the Act to perform the acts of barbering or cosmetology for which the person will provide instruction at a school licensed under this chapter.

(22) Law and Rules Book--A publication prepared and issued in a format prescribed by the department containing Texas Occupations Code Chapter 1603, and 16 Texas Administrative Code Chapter 83.

(23) License--A permit, certificate, approval, registration, or other similar permission issued by the department under Texas Occupations Code, Chapter 1603. The term does not include a student permit.

(24) License by substantial equivalence--A process that permits a barbering or cosmetology license holder from another jurisdiction or foreign country to obtain a Texas barbering or cosmetology license without repeating barbering or cosmetology education or examination license requirements.

(25) Manicurist--A person who holds a manicurist specialty license and who is authorized to practice the services defined in Texas Occupations Code §1603.0011(a)(7)-(8).

(26) Manicurist/Esthetician--A person who holds a manicurist/esthetician specialty license and who is authorized to practice the services defined in Texas Occupations Code §1603.0011(a)(3)-(8), and (c). A manicurist/esthetician may also be known as an "esthetician/manicurist."

(27) Mini-Establishment--A barbering or cosmetology establishment in which a person practices barbering or cosmetology under a license issued under this chapter and which consists of a room or suite of rooms that is one of a number of connected establishments in a single premises that open onto a common hallway or common area.

(28) Mini-Establishment Licensee--A person or entity that holds a license for a mini-establishment. The mini-establishment licensee must be responsible for all requirements under the Act and this chapter for the mini-establishment.

(29) Mobile Establishment--An establishment or specialty establishment that is operated in a self-contained, self-supporting, enclosed mobile unit.

(30) Operator--A person who holds a cosmetology operator license and who is authorized to perform any cosmetology service under Texas Occupations Code §1603.0011(a) and (c).

(31) Practitioner--A person holding any individual practitioner license issued under Subchapter E-1 of the Act to perform barbering or cosmetology services.

(32) Preparation--A substance used to beautify a person's face, neck or arms or to temporarily remove superfluous hair from a person's body including but not limited to antiseptics, tonics, lotions, powders, oils, clays, creams, sugars, waxes and/or chemicals.

(33) Private School--A private postsecondary school licensed under Subchapter E-3 of the Act that offers instruction in any barbering or cosmetology service.

(34) Provisional license--A license that allows a person to practice barbering or cosmetology in Texas pending the department's approval or denial of that person's application for licensure by substantial equivalence.

(35) Public School--A public secondary or postsecondary school licensed under Subchapter E-3 of the Act that offers instruction in any barbering or cosmetology service.

(36) Remote Service Business--A corporation, partnership, sole proprietorship, or other entity that, for compensation, enables a client to schedule a digitally prearranged remote service with a person holding a license under Subchapter E-1 of the Act.

(37) Safety Razor--A razor that is fitted with a guard positioned between the entire cutting edge of the razor and the skin in a manner that reduces the risk of cutting the skin.

(38) School--A public school or private school licensed under Subchapter E-3 of the Act that offers instruction in any barbering or cosmetology service.

(39) Self-Contained--Containing within itself all that is necessary to be able to operate without connecting to outside utilities such as water and electricity.

(40) Special Event--An event of cultural, social, or religious significance justifying off-site provision of barbering or cosmetology services, including weddings, quinceaneras, pageants, proms, debutante balls, birthday parties, religious and cultural ceremonies, and on-stage performances.

(41) Specialty Establishment--An establishment in which only services defined in Texas Occupations Code §1603.0011(a)(3)-(9) and (c) are performed. Specialty

establishments may only perform the services for which the establishment is licensed.

(42) Specialty Instructor--An individual acting as an instructor who holds a practitioner license that is not class A barber or cosmetology operator.

(43) Student Permit--A permit issued by the department under this chapter to a student enrolled in a school which states the student's name and the name of the school.

(44) Tweezing Technique--Any type of temporary hair removal procedure involving the extraction of hair from the hair follicle by use of, but not limited to, an instrument, appliance or implement made of metal, plastic, or other material.

(45) Weaving--The process of attaching, by any method, commercial hair (hair pieces, hair extensions) to a client's hair and/or scalp. Weaving is also known as hair integration or hair intensification.

(46) Wet disinfectant soaking container--A container with a cover to prevent contamination of the disinfectant solution and of a sufficient size such that the objects to be disinfected may be completely immersed in the disinfectant solution.